

## 25STCV19540 25STCV19540

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 25STCV19540 Hearing Date: July 21, 2026 Dept: 408

Plaintiff Curtis

Addison's Motion to Compel Initial Disclosures Pursuant to Code of Civil

Procedure section 871.26 and Request for Sanctions as to Defendant FCA US, LLC

is DENIED.

I.

### BACKGROUND

On June 30, 2025, Plaintiff Curtis Addison ("Plaintiff") filed a complaint against Defendants FCA US, LLC and San Leandro Chrysler Dodge Jeep Ram ("Defendants") alleging causes of action for:

1.

Violation

of Subdivision (d) of Civil Code Section 1793.2;

2.

Violation

of Subdivision (b) of Civil Code Section 1793.2;

3.

Violation

of Subdivision (a)(3) of Civil Code Section 1793.2;

4.

Breach of

the Implied Warranty of Merchantability;

5.

Negligent  
Repair; and

6.

Fraudulent  
Inducement Concealment.

On January 8, 2026, the court sustained in part Defendants' Demurrer to Plaintiff's complaint without leave to amend as to the fifth cause of action, overruled in part as to the sixth cause of action, and denied Defendants' Motion to Strike portions of Plaintiff's complaint.

On January 28, 2026, Defendant FCA US, LLC ("FCA") filed an answer to Plaintiff's complaint.

On May 21, 2026, the court dismissed Defendant San Leandro Chrysler Dodge Jeep Ram with prejudice.

On May 29, 2026, Plaintiff filed this Motion to Compel Initial Disclosures as to FCA. On July 8, 2026, FCA filed an opposition. As of July 15, 2026, no reply has been filed.

II.

LEGAL  
STANDARD

In civil actions seeking restitution or the replacement of a motor vehicle pursuant to Code of Civil Procedure section 871.20, within 60 days of the filing of an answer or other responsive pleading, the "parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).)

Defendants must provide the documents outlined in subdivision (h), as follows: "The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

"The defendant or

manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

- (1) Copy of or  
access to a version of the owner's manual for a motor vehicle of the same make,  
model, and year.
- (2) Any warranties  
issued in conjunction with the sale of the motor vehicle.
- (3) Sample brochures  
published for the motor vehicle.
- (4) The motor  
vehicle's original invoice, if any, to the selling dealer.
- (5) Sales or lease  
agreement, if the manufacturer is in possession.
- (6) Motor vehicle  
information reports, including build documentation, component information,  
and delivery details.
- (7) Entire warranty  
transaction history for the motor vehicle.
- (8) Listing of  
required field actions applicable to the motor vehicle.
- (9) Published  
technical service bulletins for the same make, model, and year reasonably  
related to the nonconformities pertaining to the motor vehicle.
- (10) Published  
information service bulletins for the same make, model, and year reasonably  
related to the nonconformities pertaining to the motor vehicle.
- (11) Records  
relating to communications between the manufacturer or dealership and the owner  
or lessee of the motor vehicle, including those related to repair orders or

claims involving the motor vehicle.

(12) Warranty

policies and procedure manuals.

(13) Service manuals

reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit

restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit

restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit

restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty

extensions or modifications issued by the manufacturer on the motor vehicle."

(Code Civ. Proc., § 871.26,

subd. (h).)

Unless the party failing to comply with this

section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: "A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (Code Civ. Proc., § 871.26(j)(1).)

III.

DISCUSSION

Plaintiff seeks to compel initial disclosures from FCA pursuant Code of Civil Procedure section 871.26(h), arguing that FCA filed its Demurrer on November 5, 2025, and the 60-day deadline for initial disclosures expired on January 4, 2026. (Motion, at pp. 5-6.) On May 19, 2026, Plaintiff's counsel sent a meet-and-confer letter to FCA's counsel identifying deficiencies in the information provided. (Id., at pp. 5-6.) Plaintiff argues that as of May 29, 2026, FCA failed to cure the deficiencies or provide verified responses, and therefore FCA has failed to comply with its statutory obligations under Section 871.26. (Id., at p. 6.) Specifically, Plaintiff argues that FCA did not provide all documents required under Section 871.26, subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13). (Id., at p. 2.)

In opposition, FCA argues verified written responses are not required under Section 871.26. (Opp., at pp. 2-3.) FCA further argues that Section 871.26 requires limited initial disclosures, and Plaintiff's requests go beyond the scope of the statute. (Id., at p. 3.) Accordingly, FCA contends that it has produced the required documents, rendering Plaintiff's motion moot. (Id., at p. 4.)

The court finds that there is no indication that FCA did not comply with its statutory obligation to propound initial disclosures. The information Plaintiff seeks goes beyond the scope of Section 871.26(h) and may be requested through formal discovery procedures, rather than through a motion to compel initial disclosures. There is also no requirement under Section 871.26 that a manufacturer serve verified written responses in conjunction with its initial disclosures. Accordingly, the motion and the request for sanctions are denied.

IV.

#### CONCLUSION

Plaintiff Curtis Addison's Motion to Compel Initial Disclosures Pursuant to Code of Civil Procedure section 871.26 and Request for Sanctions as to Defendant FCA US, LLC is DENIED.